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Samsung has been working on a sensor that reads your brain activity and warns you if you're about to have a stroke: <http://dgit.in/15MduqP>



this new reality? And how are they safeguarding our rights?

Acharya: The answer to this question is very worrying. Sadly, there is no understanding of how technology is changing the nature of governance and crime. In a recent corruption trial in Delhi, the magistrate and court staff did not know how a digital voice recorder, which had captured the allegedly illegal transaction, functioned or how the data was transferred to a CD. If this happens in the national capital, the future of evidence law is bleak. There is also a childish understanding of cyber-crime that comes into play whenever the Internet is used to coordinate crime, which nowadays is quite common.

From the police to government officials to judges, there is only an amateur-level understanding of basic concepts of the Internet. We see manifestations of this each time entire top-level domains are blocked instead of specific sub-domains because the relevant officials failed to provide deep links. Our law, too, reflects this inexperience and mentality.

As an Indian netizen, what are some of my rights and responsibilities online?

Acharya: I think the basic principle to demand is this: whatever is legal or illegal offline should be similarly legal or illegal online. In India, this simple principle of equivalence is not followed. Hence, in the case of section 66A of the IT Act, communications that are annoying and inconvenient invite jail terms simply because they were sent using a computer. If we were to go about punishing inconvenience, I think most of the country would find themselves locked up. We must follow the principle of equivalence which extends our regular rights and responsibilities to the Internet.

What is your opinion on online censorship?

Acharya: The Internet has tremendously democratised knowledge; and, like all communications platforms, it can also be used to commit crimes. The way forward does not lie in restricting and censoring the Internet, but in understanding how it functions to be able to intelligently address crimes. Take, for instance, the law of website blocking. Like the banning of films or books, website blocks should

be seriously studied. Instead, the law permits websites to be blocked in secrecy, even the user who generated the content is unaware of the block, with no avenue for an appeal.

But, as I said earlier, I think the fundamental problem is both societal and legal. As long as we censor books and films and music and art that some people do not agree with, we are allowing fringe outfits to impose their views on the whole nation. The problem of intolerance in India afflicts all religions and communities, and for too long the free speech rights of the many are hijacked because of the fundamentalism of the few. We must understand that we should not have a right not to be offended. The law should not be invoked each time someone says something we do not like. Getting offended is a part of multicultural democracy; we just have to deal with it.

Is hacktivism a nuisance, gimmick or something that's worthy our time?

Acharya: This is an interesting question and, at the outset, let me confess that I do not think I can give you a full answer. If you compare hacktivism to street protests, then it should be allowed – even encouraged – as long as it does not impede the rights of others. So, for example, DOS attacks that prevent others from accessing a service are as condemnable as bandhs

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that prevent normal people from working. However, all democracies must allow protest, and hacktivism is a form of protest. The answer lies in finding a balance that is not coercive. The most common legitimate democratic restrictions on public protests are with regard to the time and place of the protests. Maybe something similar could be formulated for hacktivists?

In a post-Snowden world, can ultimate privacy really be achieved? What is ultimately at stake here?

Acharya: As long as humans are social

beings, ultimate privacy cannot be achieved. For me, the objections to the Snowden revelations were not about the lack of ultimate privacy, but about these two issues: (i) that mass surveillance is being conducted on a global scale, and (ii) that many surveillance programmes are illegal. There are two ways to respond to this. First, as an individual, I feel that these violations of my privacy by various intelligence agencies are too intrusive to be justified on the ground of counter-terrorism because I have never displayed even the slightest interest in engaging in violence. I think privacy invasions must be supported by some basic facts or reasonable suspicion. Second, as an Indian, I am alarmed that my government, which is usually very quick to take cover under the national security umbrella, has been caught napping and that its communications – far too many government officials use commercial US email service providers such as Yahoo or Gmail – have probably been intercepted.

Many people ask: if you are not doing anything wrong, then why object to surveillance? This is a logically fallacious argument. Privacy is not about concealing your illegal acts, it is about protecting your dignity and intimate acts from others. Most people do nothing wrong in their bathrooms and bedrooms, would we

consent to strangers watching us through cameras in our intimate spaces? Our emails, Internet activities, telephone calls and so on are similarly private and should be protected. But, since we live in a community and we have elected a government to provide us security, we should indeed be prepared to suffer some surveillance. However, this surveillance should be supported by some credible reasons, and it should be audited by an independent third party. Surveillance is power and, as we know from the popular saying, absolute power corrupts absolutely. ■